

unless there is a stay of the sanction, the order is directly enforceable by issuing a writ of execution. (See *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615.) Whereas a contempt pursuant to CCP 1218 is criminal in nature. (See *Powers v. Superior Court of Shasta County* (1967) 253 Cal.App.2d 617.)

Contempt proceedings alleging an indirect contempt require an affidavit to be presented to the judge reciting the facts that constitute contempt. (*Koehler v. Superior Court* (2010) 181 Cal.App.4th 1153, 1169.) The contempt citation must be personally served. (*Id.*) A contempt that took place outside the judge's presence must show the following: (1) issuance of the order, (2) the contemner's knowledge of the order, (3) **the contemnor's ability to obey it**; and (4) the contemner's willful disobedience. (*Id*; **emphasis added.**) At any contempt trial merely showing that a party has failed to pay sanctions is insufficient as proof beyond a reasonable doubt of the offense of contempt as proof of the party's ability to pay is required under the law. There are other requirements as well under the law such as appointment of counsel for an accused who has the inability to pay for counsel represent him or her at the contempt trial.

This motion is unnecessary as the court order awarding attorney fees in this matter is already treated as a judgment. Second, the court declines to issue an order to show cause why the party should not be found in contempt for failing to pay the award of attorney fees. Counsel should seek to enforce the attorney fees award by all legal means available to enforce a judgment.

The motion is denied.

2. 9:00 AM CASE NUMBER: C23-02562
CASE NAME: MARINER WALK CORPORATION VS. JULIAN TAYS
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED**
FILED BY: CRUZ, IRIS CORZO
TENTATIVE RULING:

The unserved motion is continued to March 20, 2026, at 9 am for defendant to effectuate service.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: RW WILLIAMS CONSTRUCTION, INC.
TENTATIVE RULING:

Hearing continued by the court to January 23, 2026, at 9am.

4. 9:00 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD. OF**
DOCUMENTS SET 1
FILED BY:
TENTATIVE RULING:

Motion moot. Default has been entered.